

From: Charan Martin charan.martin@dataprotection.education 
Subject: Re SAR
Date: 13 October 2020 at 16:43
To: Head - Scarning VC Primary School head@scarning.norfolk.sch.uk

CM

Hi Nick,

Just to recap, some notes and further thoughts which I shall also pop on the SAR log and which we can discuss on Tuesday;

Under GDPR the father is entitled to a copy of his own personal data. He is not entitled to data relating to other individuals or data which identifies other individuals directly or indirectly (eg ask can the father use redacted data together with other data he has to ascertain the identity of a redacted third party) You can therefore refuse fathers request in respect of data requested that discloses the data of other individuals, which even with redaction, would lead to their identification directly or indirectly in conjunction with other data.

Further, the father as a parent with parental responsibility, (Caroline has confirmed the father has this for both children, but please ensure you note how you have checked this against school records), the father may exercise the data rights of the children, if they are not competent to do so themselves. The school must consider whether both of the children are competent to take charge of their own data having regard to the nature of the data requested, the maturity, intelligence and experience of the children and their ability to understand fully the issues involved, which of course must be considered individually in respect of each child. I doubt from what you have said that the children will be competent but you should still consider this and document your reasons for transparency.

In respect of what I call the serious harm exemption, if the school is of the view that **disclosure of data would be likely to cause serious harm to the physical or mental health of any individual the exemption will apply. This is not a blanket exemption and you must consider the data you hold and only apply this exemption to the data to which the exemption applies.**

The school must ensure when considering the request of the father his rights as a data subject are balanced with the data rights of third parties including any consent requested and not given, duty of confidentiality owed to others, safeguarding obligations and note your reasons for not being able to comply with any aspect of the fathers request for transparency and to assist you should anyone complain.

I seem to remember that caroline said that you can not contacted the mother and it does seem that as of yet there is no need to do so as through redaction will ensure that the mother or other 3rd parties are not identified directly or indirectly and or that in respect of some data you hold the safeguarding exemption will apply. However if you do need to contact the mother once you have been through a through sift of the data you can do that when you have identified the data in issue that may necessitate this.

We do not have a pro forma letter as each case is different and will turn on its own facts but I can help you put one together after you have sifted through the remaining data and made decisions on what you can and can not provide to the father in response to his request.

Best wishes,

Charan Martin
LLB (Hons)
Barrister
DPE Consultant
charan.martin@dataprotection.education



This email (and any attachment) is intended only for the attention of the addressee(s). Unauthorised use, disclosure, storage or copying is not permitted. If you are not the intended recipient, please destroy all copies and inform the sender by return email.

Internet email is not a secure medium. Any reply to this message could be intercepted and read by someone else. Please bear that in mind when deciding whether to send material in response by email

On 13 Oct 2020, at 16:37, Head - Scarning VC Primary School <head@scarning.norfolk.sch.uk> wrote:

Hi Charan - yes this is the right account.
Thank you.
Nick

Get [Outlook for iOS](#)

From: Charan Martin <charan.martin@dataprotection.education>
Sent: Tuesday, October 13, 2020 3:50:40 PM
To: Head - Scarning VC Primary School <head@scarning.norfolk.sch.uk>
Subject: test email

Hi Nick,

Can you respond to this test email please. I will then I will send you some notes about the issues to consider.

Best wishes,

Charan Martin
LLB (Hons)
Barrister
DPE Consultant
charan.martin@dataprotection.education

<uc.png>

This email (and any attachment) is intended only for the attention of the addressee(s).
Unauthorised use, disclosure, storage or copying is not permitted. If you are not the intended recipient, please destroy all copies and inform the sender by return email.

Internet email is not a secure medium. Any reply to this message could be intercepted and read by someone else. Please bear that in mind when deciding whether to send material in response by email

